

26STLC01250 26STLC01250

County: los-angeles

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Case Number: 26STLC01250 Hearing Date: September 24, 2026 Dept: 26

TENTATIVE RULING:

Plaintiff French Quarter, LLC's Motion to Compel Defendant's Responses to Discovery, to Deem Requests For Admission Admitted, and for Monetary Sanctions is denied.

Analysis:

Plaintiff French Quarters, LLC ("Plaintiff") propounded Special Interrogatories, Set One, Form Interrogatories, Set One, Request for Production of Documents, Set One, and Requests for Admission, Set One, on Defendant Ghazal Safdari ("Plaintiff") on May 11, 2026. (Motion, Snyder Decl., Exhs. 1-4.) Despite a meet-and-confer effort, Defendant has not served responses as of the filing of the instant Motion to Compel Defendant's Responses to Discovery, to Deem Requests for Admission Admitted, and for Monetary Sanctions. (Id. at ¶¶5-8.) Plaintiff filed the instant Motion and concurrently served it on Defendant by first-class mail on August 19, 2026. No opposition has been filed to date.

Discussion

Initially, the Court notes that Plaintiff filed combined motions to compel responses with respect to four separate sets of discovery: (1) Form Interrogatories, Set One; (2) Special Interrogatories, Set One; (3) Request for Production of Documents, Set One; and (4) Requests for Admission, Set One. Filing a single motion to compel responses and/or deem admissions regarding four separate sets of discovery negatively impacts the Court's calendar by

placing more motions on the calendar than slots have been provided by the online reservation system. Further, it results in confusion in the motion papers regarding the arguments and evidence with respect to each request. Finally, combining multiple discovery sets into a single motion allows the moving party to avoid paying the requisite filing fees. Statutorily required filing fees are jurisdictional and "it is mandatory for the court clerks to demand and receive statutorily required filing fees." (See *Duran v. St. Luke's Hospital* (2003) 114 Cal.App.4th 457, 460.) Plaintiff must make separate motion reservations to address each set of discovery and pay each filing fee.

Additionally, the discovery requests served by Plaintiff do not comply with Code of Civil Procedure section 94, which allows only 35 written discovery requests in the Limited Civil Court unless otherwise authorized by court order or by stipulation. (Code Civ. Proc., § 94, subd. (a); § 95.) Plaintiff served Defendant with more than 35 interrogatories alone. (Motion, Snyder Decl., Exhs. 1-2.) Based on the foregoing, the instant discovery Motion is denied. The Court will not grant a motion to compel discovery propounded in violation of the Code of Civil Procedure and filed in violation of the statutory requirement to pay filing fees.

Conclusion

Plaintiff French Quarter, LLC's Motion to Compel Defendant's Responses to Discovery, to Deem Requests for Admission Admitted, and for Monetary Sanctions is denied.

Moving party to give notice.